

Kerala Panchayat Raj (Issue of Licence to Factories, Trades, Entrepreneurship activities and other services) Rules, 1996

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Kerala Panchayat Raj (Issue of Licence to Factories, Trades, Entrepreneurship activities and other services) Rules, 1996

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Kerala Panchayat Raj (Issue of Licence to Factories, Trades, Entrepreneurship activities and other services) Rules, 1996

Rule

KERALA-PANCHAYAT-RAJ-ISSUE-OF-LICENCE-TO-FACTORIES-TRADES-ENTREPRENEURSHIP-ACTIVITIES-AND-OTHER-SERVICES-RULES-1996 of 1996

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Kerala Panchayat Raj (Issue of Licence to Factories, Trades, Entrepreneurship activities and other services) Rules, 1996

Published vide Notification No. S.R.O. No. 76/96

Published in K.G. Extraordinary No. 660 dated 23.4.2003 as Notification No. 8973/N1/2003/LSGD dated 28.3.2003.

S.R.O. No. 76/96. - In exercise of the powers conferred by Sections 232,233 and 234 of the Kerala Panchayat Raj Act,

1994 (13 of 1994) read with Section 254 thereof, the Government of Kerala hereby make the following rules, namely:-

1.

Short title and commencement.

(1)

These rules may be called the Kerala Panchayat Raj [(Issue of Licence to Factories, Trades, Entrepreneurship activities and other services)]

[Substituted '(Issue of licence to Dangerous and Offensive Trades and Factories)' by Notification No. S.R.O. No. 674/2017, dated 31.10.2017.]

Rules, 1996.

(2)

They shall come into force at once.

2.

Definitions.

- In these rules, unless the context otherwise requires,-

(a)

'Act' means the Kerala Panchayat Raj Act, 1994 (13 of 1994);

(b)

'President' means the President of a Village Panchayat;

(c)

'Secretary' means the Secretary of a Village Panchayat;

(d)

'Section' means a section of the Act;

(e)

Words and expressions used but not defined in these rules, but defined in the Act shall have the meanings respectively assigned to them in the Act.

3.

[Description of dangerous and offensive trades.

[Substituted by Notification No. S.R.O. No. 674/2017, dated 31.10.2017.]

- The Government may, for the purpose of section 232, specify in the First Schedule appended to these rules, the matters which, in the opinion of the Government, 'shall be classified as factories, trades, entrepreneurship activities and other services.]

4.

[Publication of notification regarding Trades, Services and Factories.

[Substituted 'Publication of notification regarding dangerous and offensive trades' by Notification No. S.R.O. No. 674/2017, dated 31.10.2017.]

] - The Village Panchayat may, by affixing notices in the notice board of the Offices of the Panchayat and in conspicuous places of every constituency in the Panchayat and by advertisement by way of pamphlets and loudspeakers, notify that no place in the Panchayat area shall be used for any purpose or purposes specified in Schedule I without the licence issued by the President and except in accordance with the conditions specified therein. If the licence is for running restaurants, eating houses, hotels, coffee houses, tea shops or for barber shops, the licence issued by the President shall always contain and shall be deemed to contain a condition that admission therein shall be available for every member of the public.

5.

Application for licence.

- The owner or occupier of every place used for the purposes specified in Schedule I shall, within thirty days of the publication of the notification, submit to the Secretary, application for licence for the use of such place for such purpose.

5A.

[

[Inserted by Notification No. S.R.O. No. 674/2017, dated 31.10.2017.]

The Secretary or the officer authorized by him shall issue an acknowledgment to the applicant on the receipt of application along with the supporting documents in Form No.1 appended to these rules. The Secretary or the officer

authorised by him, shall, immediately on receipt of the application, verify the application and all the supporting documents on the support and if any supporting document required is not attached with the application, the Secretary or the officer authorized by him shall immediately inform the applicant regarding the details of the missing document, if any, and allow the applicant to submit the missing document at the earliest but not later than three days from the date of receipt or application.]

6.

In the case of application, decision has to be taken by the President.

- The President may by order in writing and subject to such restrictions and regulations as he thinks fit, issue such licence or in public interest refuse to issue the same. In the case of refusal of licence the reasons for such refusal shall be mentioned in such order.

[Provided if the application is submitted along with the requisite clearance from other Departments stipulated under these rules for grant of license along with the fee specified in the Schedule II, the President shall issue the license applied for within seven days from the date of receipt of the application along with the requisite clearances.]

[Added by Notification No. S.R.O. No. 674/2017, dated 31.10.2017.]

7.

Fee for licence.

- The Village Panchayat may for every licence issued by the President, levy amounts not exceeding the rates mentioned in Schedule II.

8.

Period of licence.

- The period of every licence issued under Rule 6, will expire at the end of the year unless, for special reasons, the President considers that it should expire at an earlier date, when it shall expire at such earlier date as may be specified therein. Provided that the period of licence in respect of factory, industrial establishment etc. shall be fixed as five years and in such cases five times of the fee for licence per annum fixed by the Panchayat under Schedule III and IV shall be realised in advance.

9.

Licence not necessary for collecting or processing for domestic purposes.

- Notwithstanding anything contained in the provisions of these rules, no licence is necessary for collecting and processing any material specified in Schedule I if it is for domestic purposes and is in such measures as may be fixed by the Panchayat from time to time.

10.

[Renewal of Licence.

[Substituted by Notification No. S.R.O. No. 674/2017, dated 31.10.2017.]

- A license issued under these rules shall be renewed on payment of the fee specified under Schedule II along with a self-certificate from the applicant within thirty days before the end of an year.]

11.

Cumulative licence.

- The President shall, where the same owner uses the same place for more than one purpose enumerated in Schedule I, issue one cumulative licence for all such purposes. The Panchayat shall, on the basis of the average daily trade, fix in lump the fee for the cumulative licence in Schedule II.

12.

Application to be made for constructing or establishing factory, workshop or workplace wherein steam power or other power is to be used.

(1)

Every person intending,-

(a)

to construct or establish any factory, workshop or workplace wherein it is proposed to use steam power, water power or other mechanical power or electricity; or

(b)

to install, on any land a machinery or a manufacturing plant operated by steam power, water power or other power as aforesaid, not being machinery or manufacturing plant exempted under Rule 16, shall submit an application in writing

before the [Secretary]

[Substituted 'Village Panchayat' by Notification No. S.R.O. No. 674/2017, dated 31.10.2017.]

for permission to undertake such work before so constructing or establishing.

(2)

The application shall specify the maximum number of workers proposed to be employed on a day in the factory, workshop, workplace or on the land and shall be accompanied by,-

(i)

the plan of the factory, workshop, workplace or the land prepared in such manner as directed by the officer authorised by Government; and

(ii)

the details in respect of power, machinery, plant or land that the Village Panchayat may call for in this behalf.

(3)

[The village panchayat shall, as soon as may be after receipt of application and within 30 days in all cases,]

[Substituted by Notification No. S.R.O. No. 674/2017, dated 31.10.2017.]

(a)

grant the permission applied for either absolutely or subject to such condition as it thinks fit to impose, or

(b)

[if it is of the opinion that such construction or establishment is objectionable by reason of high density of population in the neighborhood and is likely to cause nuisance the Secretary shall as soon as may be after the receipt of application obtain an expert opinion of department concerned with regard to the determination of the nuisance or its abatement, at the cost of the owner or person in charge of the factory, workshop, workplace or machinery concerned and such report shall be furnished as soon as possible but not later than fifteen days of reporting of such nuisance and the village panchayat shall issue permission subject to such conditions as may be required for abatement of nuisance, if any, as recommended in the expert opinion of the concerned department; or]

[Substituted by Notification No. S.R.O. No. 674/2017, dated 31.10.2017.]

(c)

[if any order on an application for permission under this Act or rule is not communicated to the applicant within fifteen days from the date of receipt of application by the Secretary the permission shall be deemed to have been issued for the period required in the application subject to the Act, rules and bye laws and all conditions which would have been imposed; or]

[Substituted by Notification No. S.R.O. No. 674/2017, dated 31.10.2017.]

(d)

the Secretary shall, in the case of factories, industrial establishments etc. with machinery having capacity of less than 5 horse power and not causing pollution after accepting the fee for licence, without the no objection certificate of another establishments or the special permission of the Village Panchayat, issue licence.

(4)

Appeal against the decision of the Village Panchayat may be submitted before the Green Channel Counter and the Village Panchayat is liable to implement the decision thereon.

(5)

Before granting permission under sub-rule (3), the Village Panchayat shall,-

(a)

if the factory, workshop, workplace or the land comes within the purview of the Factories Act, 1948, obtain the approval of the Inspector of Factories appointed under the said Act, having jurisdiction over the Village Panchayat area or if there is more than one such Inspector, of the Inspector, designated by the Government in this behalf by general or special order as regards the plan of the factory, workshop, workplace or premises with reference to,-

(i)

the adequacy of the provision for ventilation and light;

(ii)

the sufficiency of the height and dimensions of the rooms and doors;

(iii)

the suitability of the exits to be used in case of fire; and

(iv)

such other matters as may be prescribed by the Government:

Provided that no approval of the Inspector of Factories is necessary if there is the approval of the Green Channel Counter in respect of the light structure of the room and the utility thereof.

(b)

consult and take into consideration, the opinion of the Officer authorised in this behalf, as regards the suitability of the site of the factory, workplace or the land for the purpose specified in the application; and

(c)

in respect of matters that may be specified by the Government by general or special order consult with the Divisional Fire Officer the precautionary measures to be taken against outbreak of fire.

(6)

A worker may be employed on any day in a factory, workshop, workplace or on land coming under the purview of the Factories Act, 1948 only after obtaining the permission granted under sub-rule (3) authorising such employment or after submitting application before the Village Panchayat for fresh permission authorising such employment. Before granting such permission the Panchayat shall obtain the approval of the Inspector of Factories mentioned in clause (a) of sub-rule (5) in respect of the matters specified therein as regards the plan of the factory, workshop, workplace or the land.

(7)

The grant of permission under this section,-

(a)

shall be subject to such restrictions and conditions as may be specified by the Government in respect of replacing machinery, levying fees, the conditions that shall be followed etc and

(b)

if any rules exist in respect of constructing buildings in the Panchayat areas, it shall not be considered not necessary to follow such rules:

Provided that the industrial units, constructed within an industrial estate under the Industries Department or functioning with the recognition of the Industries Department, [or declared by Kerala State Pollution Control Board as Green and white category industries]

[Inserted by Notification No. S.R.O. No. 674/2017, dated 31.10.2017.]

may be granted permission for construction, considering them as a single unit if the same has the approval of the Industries Department.

Similarly, no prior licence shall be necessary for the installation of industrial establishments in the industrial estates, industrial growth centres, industrial development plots, industrial development areas and other sites approved by the Industries Department and such establishments may, after remitting the prescribed fee for licence, construct the building, and may install machineries and start functioning.

Explanation. - The word 'worker' in sub-rules (2) and (6) of this rule shall, in relation to any factory, workshop, workplace or land, has the same meaning as in the Factories Act, 1948.

13.

The Village Panchayat may issue direction for abatement of nuisance caused by steam or other power.

(1)

Where the (nuisance caused is)* due to noise or vibration created in any factory, workshop or workplace in which steam power, water power or other mechanical power or electricity is used, the [Secretary]

[Substituted 'Village Panchayat' by Notification No. S.R.O. No. 674/2017, dated 31.10.2017.]

may issue such directions as it thinks fit for the abatement of such nuisance within a reasonable time to be specified for the purpose.

[Provided before issue of such directions the secretary shall obtain expert opinion from the department concerned regarding the extend of nuisance caused due to noise, vibration created in any factory, workshop or workplace in which steam power, water power or other mechanical power or electricity is used and the condition to be imposed for abatement of such nuisance.]

[Added by Notification No. S.R.O. No. 674/2017, dated 31.10.2017.]

(2)

Where there has been wilful default in carrying out such directions or where abatement is found impracticable, the [Secretary]

[Substituted 'Village Panchayat' by Notification No. S.R.O. No. 674/2017, dated 31.10.2017.]

may, after consultation with the department concerned,-

(a)

prohibit the use of the particular kind of fuel; or

(b)

restrict the noise or vibration by prohibiting the works in the factory, workshop or workplace between 9.30 in the night and 5.30 in the morning.

14.

Powers of the Government to pass orders or give directions to Panchayats.

- The Government may, either generally or, after consulting the Village Panchayat, in any particular case, make such order or give such direction as they deem fit in respect of any action taken, or omitted to be taken under sub-rule (3) of Rule 12 or Rule 13.

15.

The Secretary may enter any factory, workshop or workplace.

(1)

The Secretary or a person authorised in this behalf may,

(a)

at any time between sun rise and sun set;

(b)

at any time when any industry is being carried on; and

(c)

at any time in the day or in the night, if he has reason to believe that any offence is being committed under Rule 12 or Rule 13; enter any factory or workshop or workplace.

(2)

No claim shall lie against any person for any damage or inconvenience necessarily caused by the exercise of powers under this rule or by the use of any force necessary for the purpose of effecting an entrance under this rule.

16.

Exemption.

- The following shall be exempted from the provisions of Section 233 -

(1)

Electrical goods intended to be used only for domestic or personal purpose or for comfort and electrical machinery intended to be used for such purposes or for comfort;

(2)

Non-electrical goods having a capacity of less than two horse power intended to be used only for domestic or personal purpose or for comfort and machinery having a capacity of less than two horse power intended to be used for such purposes or for comfort;

(3)

Electrical installations including motor used for agricultural purposes;

(4)

Non-electrical installations having a capacity of less than two horse power installed in connection with agricultural purposes;

(5)

Normally unattended static transformer stations;

(6)

Normally unattended condenser stations;

(7)

Normally unattended rectifier stations;

(8)

Machinery installed by the Electricity Board for the generation of electricity.

Secretary may grant permission, free of all charge, for the installation of non electrical machinery having a capacity of more than two horse power which are purely installed for agricultural purposes.

17.

Machinery operated by electricity.

- The fee that may be charged for granting permission under Section 233 for installing on a land, any machinery or manufacturing plant operated by electricity, shall not exceed the maximum specified in Schedule III appended to these rules:

Provided that the fee that may be charged under this rule shall not exceed the fee charged for the installation of any machinery or manufacturing plant with the same horse power, operated by any means other than electricity.

18.

Maximum fee for the place where machinery or manufacturing plant operated by electricity is used.

- The fee that may be charged for granting licence or for the renewal of licence for one year under Section 232 for the place where any machinery or manufacturing plant operated by electricity, is used shall not exceed the maximum specified in Schedule III appended to these rules:

Provided that where any such licence is granted or renewed for a period that is less than one year, the total fee that may be charged for the same place for any year in respect of the same machinery or manufacturing plant shall not exceed the fee that may be charged for granting or renewing licence for one year:

Provided further that the fee that may be charged under this rule shall not exceed the fee charged for the installation of any machinery or manufacturing plant having the same horse power operated by means other than that of electricity.

19.

Additional Fee.

- The maximum fee specified in Schedule III appended to these rules shall be applicable only for the application submitted in due time. In the case of belated applications an additional fee of 25 per cent of the fee for licence payable under the schedule may be charged.

20.

Machinery operated by power other than electricity.

- The fee that may be charged for granting permission under Section 233 of the Act for the installation on any land, any machinery or manufacturing plant operated by any power other than electricity shall not exceed the maximum specified in Schedule III appended to these rules.

21.

Maximum fee for the machinery or manufacturing plant operated by power other than electricity.

- The fee that may be charged for granting or renewing licence for one year under Section 232 for the place where any machinery or manufacturing plant operated by power other than electricity is used, shall not exceed the maximum specified in Schedule IV appended to these rules:

Provided that where any such licence is granted or renewed for a period that is less than one year, the total fee that may be charged for the same place for any year in respect of the same machinery or manufacturing plant shall not exceed the fee that may be charged for granting or renewing licence for one year.

22.

Additional Fee.

- The maximum fee specified in Schedule IV appended to these rules shall be applicable only for the application submitted in due time. In the case of belated applications an additional fee of 25 percent of the fee for licence payable under the schedule may be charged.

23.

Exemption.

- Nothing contained in these rules shall be deemed to empower for the levy of any fee for permission or licence as the case may be, in respect of the installation of machinery or of manufacturing plant exempted from the operation of Section 233.

24.

Instructions that the licensee shall obey.

- Every licensee shall obey the following instructions:-

(i)

The licensee shall clean the place at the end of every working day;

(ii)

The rubbish or animal remains or other substances which fall or are deposited, on any part of the place or land shall be collected and caused to be removed to the satisfaction of the Secretary;

(iii)

The licensee shall always cause to keep all portions of the inner walls of every building, the ground and the foot path of the land maintained in good condition to prevent the soaking of any liquid, waste, rubbish or any offensive or dangerous substance that may be splashed or may dabble therein;

(iv)

The licensee shall always cause to keep, the drainage channel and the device to drain waste water in the aforesaid land or adjoining thereto maintained in good condition;

(v)

No person suffering from skin disease of any kind, leprosy or ulcer shall be employed in any land used for trade;

(vi)

Every licensee shall place a signboard showing his name, number and purpose of the licence, in a conspicuous part of the place in respect of which licence has been granted.

25.

Cancellation of Licence.

- The President may, if he is convinced that any of the conditions of the licence has been violated or if a Court of Law has convicted the licensee under the protection of Civil Rights Act, 1955 (Central Act 22 of 1955*) and that the offence has been committed in respect of any matter connected with the licence, cancel the licence issued.

26.

Penalties for violation of rules.

- The Panchayat shall, for the violators of these rules, impose penalties under Section 255 of the Act.

I

(See Rule 3)

1. Aerated waters, cool drinks - Manufacturing, storing, selling.
2. Pandanus fibre and yarn - Storing, packing, cleansing, preparing or selling by hand or otherwise.
3. Preparation and selling of ammunition - Storing, packing, cleansing, preparing, manufacturing or selling by way of process.
4. Soaking of Arecanuts, storage, preparation of other products, sale.
5. Articles made of flour - Baking, preparing, keeping storing or selling for human consumption (other than for domestic use).
6. Ashes - Storing by any means, packing, cleansing, preparing, manufacturing, dumping, sifting or selling.
7. Bamboos - Storing for sale, hire or manufacture, preparation of products, selling.
8. Biscuits - Baking, preparing, keeping, storing or selling for human consumption other than for domestic use.
9. Blood - Storing, packing, cleansing, preparing or selling.
10. Bone - Storing, packing, cleansing, preparing or selling by means of any process.
11. Bread (other than for domestic use) - Baking, preparing, keeping, storing or selling for human consumption.
12. Bricks - Manufacture, sale.
13. Camphor - Packing, cleansing, preparing, manufacturing or boiling or selling by means of any process.
14. Candles - Packing, preparing, manufacturing or selling by means of any process.
15. Carpets - Manufacture, sale.
16. Cashewnut and its Kernel - Storing, packing, preparing, manufacturing or selling by means of any process.
17. Musical instruments - Packing, preparing, storing, manufacturing or selling by means of any process.
18. Cement - Packing, preparing, manufacturing or preparing other products or selling, by means of any process. .
19. Charcoal - Dumping, sifting, selling, or storing.
20. Chemicals - Storing, packing, processing, preparing, manufacturing or selling by means of any process.
21. Ayurvedic Medicines, Homoeopathic Medicines - Manufacture, sale.
22. Chillies - Grinding by machinery.
23. Chillies (dried) - Selling or storing for wholesale trade.

24. Chlorate mixture - Storing, packing, preparing, manufacturing or selling by means of any process.
25. Cloths - Dyeing, manufacture, making of other products, sale.
26. Coal - Dumping, sifting, selling or storing.
27.
Coconut fibre - Storing, packing, cleansing, preparing, manufacturing, making products or selling.
28.
Coconut husks and cadjan leaves - Soaking, sale.
29.
Coconut shell - Storing, making of products, sale.
30.
Coffee house and tea shop - Running,
31.
Coir - Storing, packing, preparing, manufacturing, making other products or selling by means of any process,
32.
Combustible materials - Storing for wholesale or retail trade making other products selling.
33.
Consumables - (other than for domestic use) Baking, preparing, keeping, storing, selling for human consumption.
34.
Condiments - Manufacturing, selling.
35.
Confectionery - (other than for domestic use) Baking, preparing or selling.
36.
Copra - Preparing, storing, making other products or selling.
37.
Cotton - (cotton refuse and cotton seed) - Storing, packing, pressing, cleansing, preparing, manufacturing or selling by means of any process.
38.
Cow-dung cakes - Storing, packing, cleansing, preparing, manufacturing, manufacturing other products or selling by means of any process.
39.
Dyes - Packing, cleansing, preparing, manufacturing or selling by means of any process.
40.
Explosives - Storing, selling fibre (other than coconut fibre) - Storing, manufacturing, manufacturing other products or selling.
41.
Fat - Storing, packing, cleansing, preparing, manufacturing or selling by means of any process.
42.
Fish fins - Storing, packing, cleansing, preparing, manufacturing other products or selling by means of any process.
43.
Firewood - Selling or storing.
44.
Fireworks - Storing, packing, cleansing, preparing, manufacturing or selling by means of any process. .
45.
Fish - Storing, packing, cleansing, preparing, making other products or selling by means of using any process.
46.
Fish oil - Storing, packing, cleansing preparing, manufacturing, manufacturing other products or selling by means of any process.
47.
Flax - Storing, packing, pressing, cleansing, manufacturing making other products or selling by means of any process.
48.
Fleshing - Storing, packing, purifying, manufacturing or selling by means of any process.

49.
Flour - Packing, purifying, preparing, manufacturing, manufacturing other products or selling by means of any process.
50.
Fulminate of mercury - Storing, packing, purifying, preparing, manufacturing other products or selling by means of any process.
51.
Fuel - Storing, using for any industrial purpose, selling, manufacturing other products and selling.
52.
Furniture - Making and storing for sale or hire, manufacturing, storing and selling of building materials.
53.
Gas - storing, packing, purifying, preparing, manufacturing or selling by means of any process.
54.
Ghee - Storing, packing, refining, preparing, manufacturing or selling by means of any process.
55.
Gold - Refining, making ornaments, sale.
56.
Grains - Wholesale or retail selling or storing for trade.
57.
Pulse - Husking by machinery, sale.
58.
Ground nut - Selling or storing for trade.
59.
Gilding and electroplating.
60.
Gun cotton - Storing, packing, pressing, refining, preparing manufacturing or selling by means of any process.
61.
Gunny bag - Storing, packing, manufacturing or selling by means of any process.
62.
Gunpowder - Storing, packing, preparing, manufacturing or selling by means of any process.
63.
Hair - Storing, selling or manufacturing other products.
64.
Hair dressing saloon - Keeping a shaving or hair cutting saloon, beauty parlour etc.
65.
Hay - storing, selling, making other products or selling.
66.
Hemp - Storing, using, preparing or manufacturing other products.
67.
Hides - Storing, cleansing or sellipg.
68.
Hoofs - Storing, cleansing or selling.
69.
Horns - Storing or cleansing.
70.
Hotel, Restaurant, catering service - Running,
71.
Ice - Manufacturing and selling.
72.
Jaggery - Storing, preparing or making other products and selling.
73.
Jute - Storing, preparing or manufacturing other products and selling.

74.
Kakhi - Preparing, selling.
75.
Lac - storing, refining, making other products and selling.
76.
Lead - Melting, storing or plating vessels,
77.
Leather - Storing, cleansing, making other products or selling.
78.
Lemon grass oil - Manufacturing, storing or selling.
79.
Lime - Storing, making other products or selling.
80.
Limeshells - Storing, preparing or manufacturing other products and selling.
81.
Manure, pesticide - Storing, preparing, packing, selling.
82.
Machinery - Storing, making and selling of machinery for industrial purposes (except local goods).
83.
Preparation and sale of substances producing harmful or offensive smell, fumes, dust or sound.
84.
Matches - Storing, manufacturing or selling.
85.
Meat - Storing, preparing or selling.
86.
Metals (including gold, silver) - Beating, cutting, casting, moulding or selling.
87.
Molasses - Storing, packing, refining, preparing, or making other products and selling.
88.
Nitro-compound - Storing, refining, preparing or selling.
89.
Nitron-glycerine - Storing, packing, preparing or selling.
90.
Nitro-mixture - Storing, packing, preparing or selling.
91.
Tapioca - Storing or making other products and selling.
92.
Oil - Storing, preparing or selling.
93.
Paddy - Boiling or husking by machinery or selling.
94.
Paper - Storing, preparing, making or selling.
95.
Petroleum compounds - Storing, preparing, making or selling.
96.
Pitch - Storing, preparing, making or selling.
97.
Pottery - Storing, preparing, making or selling.
98.
Radio, Television - Manufacturing, assembling, repairing or selling.
- 99.

Resin - Storing, preparing, making or selling.

100.

Granite, kadappa stone, mosaic, marble - cutting, storing, polishing, preparing, sculpturing or selling.

101.

Sago - Manufacturing, winnowing or selling.

102.

Rug - Storing, making or selling.

103.

Salt-peter - Storing, packing, preparing, manufacturing or selling.

104.

Seekai - Powdering by machinery, sale.

105.

Shellac - Storing, refining, preparing, manufacturing or selling.

106.

Silk - Storing, preparing, manufacturing or selling.

107.

Skin - Storing, cleaning, processing or selling.

108.

Soap - Storing preparing, manufacturing or selling.

109.

Spirit - Storing, refining, preparing, manufacturing or selling.

110.

Hay - Selling, storing or making other products and selling.

111.

Sugar - Storing, refining, preparing, manufacturing or making other products or selling.

112.

Sugar-candy - Storing, preparing, changing by making other products or selling.

113.

Sulphur - Storing, processing, cleansing, preparing or selling.

114.

Surki - Storing, processing, cleansing, preparing or selling.

115.

Sweet-meats - Baking preparing, or selling.

116.

Tallow - Storing, preparing, manufacturing, melting or selling.

117.

Tar - storing, packing, refining, preparing or selling.

118.

Thatching materials - Storing or selling.

119.

Tiles - Manufacture, sale.

120.

Timber - Storing, sale.

121.

Tobacco - Storing, processing or making other products and selling.

122.

Turpentine, Kerosene, paint, varnish etc. - Storing, preparing, manufacturing or selling.

123.

Laundry - Washing dirty clothes and storing dirty clothes for washing or cleansing or keeping.

124.

Animal fibre - Storing, cleansing, preparing other products or selling.

125.
Yarn - Storing, packing, cleansing, dyeing, manufacturing or selling.
126.
Video, Audio - Storing, hiring, selling, repairing.
127.
Xerox copying, executing Typewriting (job works)
128.
Tailoring shop - Running.
129.
Vegetables - Storing, sale.
130.
Poultry, pig, goat - Storing, sale.
131.
Egg - Storing, sale.
132.
Milk - Milk products, storing, sale.
133.
Private Telephone booths; courier services - Running.
134.
Rubber, rubber products - Manufacture, storage, sale.
135.
Spices - Storage, sale.
136.
Electrical goods - Storage, sale.
137.
Plastic products - Preparation, sale.
138.
Oil cake, cattlefeed, poultry feed - Manufacture, sale.
139.
Abkari shops - Storing and selling.
140.
Pickles - Manufacture, sale.
141.
Computer products - Storage, sale.
142.
Private hospital - Running.
143.
Paramedical institutions, laboratories, etc. - Running.
144.
Vehicles (mechanical and others) - Sale.
145.
Vehicles - Repairing.
146.
Foot-wear, bag - Sale, manufacture.
147.
Stationery, Fancy - Running shops.
148.
Handicrafts - Manufacture, sale.
149.
Retail ration depot, Maveli store, Consumer store etc. - Running.
- 150.

Kerosene - Sale.

151.

Text books and periodicals - Sale.

152.

Photo studio - Running.

153.

Signboards - Manufacturing.

154.

Water - Storage, sale.

155.

Flowers - Storage, sale.

156.

Fruits - Storage, sale.

157.

Umbrella - Storage, manufacture, sale.

158.

Press - Running.

159.

Painting - Running.

[Schedule II]

[Substituted by Notification No. S.R.O. No. 674/2017, dated 31.10.2017.]

(See Rule 7)

Maximum fees which may be fixed towards licence fee

Annual licence fee that may be charged

1. Micro Enterprises(where the capital investment is not exceeding twenty five lakh rupees in the case of manufacturing sector, and not exceeding ten lakh rupees in the case of service sector)

Rs. 500

2. Mini Enterprises(where the capital investment exceeding twenty five lakh rupees and not exceeding one crore rupees in the case of manufacturing sector and exceeding ten lakh rupees and not exceeding fifty lakh rupees in the case of service sector)

Rs. 1000

3. Small Enterprises(where the capital investment exceeding one crore rupees and not exceeding five crore rupees in the case of manufacturing sector and exceeding fifty lakh rupees and not exceeding two crore rupees in the case of service sector)

Rs. 5,000

4. Medium Enterprises(where the capital investment exceeding five crore rupees and not exceeding ten crore rupees in the case of manufacturing sector and exceeding two crore rupees and not exceeding five crore rupees in the case of service sector)

Rs. 10000

5. Large Enterprises(where the capital investment exceeding ten crore rupees in the case of manufacturing sector and exceeding five crore rupees in the case of service sector)

Rs. 15000

III

(See Rules 18 and 19)

Capacity of the machine in Horse power

Maximum fee that may be levied (Rupees)

Rectifier machines necessary for cinema,
without considering Horse power

25

Other machines of not more than one Horsepower

10

Other machines of more than one Horse power but
not more than five Horse power

50

Other machines of more than five Horse power
but not more than ten Horse power

100

Other machines of more than ten Horse power but
not more than twenty Horse power

200

Other machines of more than twenty Horse power
but not more than thirty Horse power

300

Other machines of more than thirty Horse power
but not more than forty Horse power

400

Other machines of more than forty Horse power
but not more than fifty Horse power

500

Other machines of more than fifty Horse power
but not more than hundred Horse power

1000

Those of more than hundred Horse power but up
to two hundred Horse power

2000

For every successive Horse power additional ten
rupees each

IV

(See Rules 20 and 21)

Capacity of the machine in Horse power

Maximum fee that may be levied (Rupees)

Machines for domestic purpose

Nil

Other machines of not more than one Horse power

5

Other machines of more than one Horse power but
not more than five Horse power

25

Other machines of more than five Horse power
but not more than ten Horse power

50

Other machines of more than ten Horse power but
not more than twenty Horse power

100

Other machines of more than twenty Horse power
but not more than thirty Horse power

150

Other machines of more than thirty Horse power
but not more than forty Horse power

200

Other machines of more than forty Horse power
but not more than one hundred Horse power

500

In case of more than one hundred Horse power, for every successive Horse power, additional five rupees each
V

[See clauses (a) and (b) of sub-rule (5) of Rule 12]

List of Industries which require clearance

1. (a) Manufacture of Battery cells;

(b)

Manufacture of various parts of bicycles including tyres and tubes;

(c)

Electric lamps, tube lights and mercury bulbs and metal accessories like reflectors and shades;

(d)

Manufacture of hand tools, machines, industrial and scientific instruments where cutting oil and heat treatment and chromium plating for electroplating are involved;

(e)

Iron and steel for carrying out pickling;

(f)

Manufacture of electrical or electronic parts like printed circuits, valves, involving acid treatment, electroplating, solvent treatment;

(g)

Telephone, Telegraph, Teleprinter, etc.; involving electroplating heat treatment of various parts and manufacture of letter types;

(h)

Time pieces and watches involving plating and also manufacture of luminescent dial and other parts.

2. Chemicals and Fertilizers

3. Dye stuffs

4. Food products

5. Leather tanning

6. Processing and reconditioning of mineral oils such as engine oil, cutting oil and transformer oil.

7. Paints and varnishes

8. Manufacture of various types of paper including colour paper

9. Pharmaceuticals

10. Internal combustion engines, diesel engines, radiator

11. Textile printing, dyeing, mercerising, bleaching etc. In case problems of pollution arise due to the egression of solid, liquid and gaseous effluents as a result of the manufacture of materials under this category involving the use of water, acids, alkalies, chemicals and the heat treatment, it shall be referred to the Health Department.

VI

[See clause (d) of sub-rule (5) of Rule 12]

Categories of Industries which require clearance from the Fire Force Department

1. Explosives

2. Fire works

3. Salt peter

4. Spirituous preparation

5. Sulphur

6. Tile Factories

7. Industries using L.P.G.

8. Factory buildings with thatched sheds

9. Matchbox

10. Manufacture of acids.

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